NO. 18-0358

In the Supreme Court of Texas
Judicial Panel on Multidistrict Litigation

IN RE TEXAS OPIOID LITIGATION

Plaintiffs' Joint Response to Defendants' Motion to Transfer and Request for Immediate Stay

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Plaintiffs[1] offer this joint response to Manufacturing Defendants' Joint Motion to Transfer, filed April 20, 2018, for the Panel's consideration of Defendants' motion and the proper forum for the proposed opioid multi-district litigation (MDL) proceedings. As an initial matter, Plaintiffs join in the Texas Attorney General's request that a ruling on the motion to transfer be delayed.

I. INTRODUCTION

Plaintiffs acknowledge that the opioid litigation pending in Texas may meet the criteria for designating an MDL pretrial court to coordinate pretrial proceedings if (1) the cases involve "one or more common questions of fact," and (2) the "transfer would be for the convenience of the parties and witnesses" and "would promote the just and efficient conduct of the cases." Tex. R. Jud. Admin. 13. It is not possible to fully consider whether transfer is appropriate, however, because Defendants have failed to properly identify all related cases and include all interested parties. For this reason, Defendants' motion is deficient and should be denied at this time. In the alternative, the Texas MDL Panel should choose an appropriate MDL Court based on the parties' concerns about convenience and judicial qualifications and experience.

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[1] Plaintiffs joining in this response are County of Dallas, County of Delta, County of Falls, County of Hopkins, County of Travis, and County of Van Zandt. As noted in Sec. II.A, not all Plaintiffs with claims pending against moving Defendants were identified or included in Defendants' Joint Motion to Transfer and Request for Immediate Stay.

II. ARGUMENT

The Texas MDL Panel may transfer related cases to an MDL court to coordinate pretrial proceedings because (1) the cases involve "one or more common questions of fact," and (2) the "transfer would be for the convenience of the parties and witnesses" and "would promote the just and efficient conduct of the cases." Tex. R. Jud. Admin. 13. But it is important for all parties with an interest in the litigation be provided the opportunity to be heard by the Panel before a proposed transfer. Defendants have failed to include all interested parties, so the motion should be denied in its current form. Moreover, to ensure that the conduct of the cases is actually just and efficient, if and when an MDL is designated, it is important for the chosen pretrial court to be located in an easily accessible city and for the chosen judge to have the experience and qualifications to take on this complex litigation.

A. The Motion Is Procedurally Defective and Does Not Allow All Affected Parties To Be Heard.

Tex. R. Jud. Admin. 13.3(a) provides that a motion to transfer must:

(1) state the common question or questions of fact involved in the cases;

(2) contain a clear and concise explanation of the reasons that transfer would be for the convenience of the parties and witnesses and would promote the just and efficient conduct of the cases;

(3) state whether all parties in those cases for which transfer is sought agree to the motion; and

(4) contain an appendix that [identifies] the related cases for which transfer is sought…

Defendants' motion identifies six cases in which transfer is sought:

1. No. D-1-GN-18-00290; *County of Dallas v. Purdue Pharma, L.P., et al.* in the 116th District Court of Dallas County, Texas.
2. No. 11125; *County of Delta v. Purdue Pharma, L.P., et al.* in the 62nd District Court of Delta County, Texas.
3. No. CV40015; *County of Falls v. Purdue Pharma, L.P., et al.* in the 82nd District Court of Falls County, Texas.
4. No. CV43486; *County of Hopkins v. Purdue Pharma, L.P., et al.* in the 62nd District Court of Hopkins County, Texas.
5. No. D-1-GN-18-000625; *County of Travis v. Purdue Pharma, L.P., et al.* in the 216th District Court of Travis County, Texas.
6. No. 17-00302; *County of Van Zandt v. Purdue Pharma, L.P., et al.* in the 294th District Court of Van Zandt, Texas.

Defendants did not include five other cases brought by Texas Counties in which Purdue Pharma, L.P. had already been served:

1. No. 29267; *County of Burleson v. Purdue Pharma, L.P., et al.* in the 335th District Court of Burleson County, Texas. (Ex. 1)
2. No. 2018-DCL-02237-G; *County of Cameron v. Purdue Pharma, L.P., et al.* in the 404th District Court of Cameron County, Texas. (Ex. 2)
3. No. C-1349-18-C; *County of Hidalgo v. Purdue Pharma, L.P., et al.* in the 139th District Court of Hidalgo County, Texas. (Ex. 3)
4. No. CV1813222; *County of Liberty v. Purdue Pharma, L.P., et al.* in the 75th District Court of Liberty County, Texas. (Ex. 4)
5. No. 18-04-24828; *County of Waller v. Purdue Pharma, L.P., et al.* in the 506th District Court of Waller County, Texas. (Ex. 5)

Presumably these cases involve similar issues, and Defendants claim that they "are expected to be tag-along actions." The motion mistakenly claims that no defendant had been served as of the time of filing, but in fact, Purdue was served in each of these five cases sometime between April 13 and April 16—before the motion was filed. (See Ex. 1-5) These cases should have been included so that the parties to those cases would have the opportunity to be heard.

Moreover, the five additional cases, which Defendants identify as expected tag-along cases, do not involve identical defendants. For example, Insys Manufacturing, LLC is a served defendant in the five above-named cases, but they are not a named defendant in any of the cases identified by Defendants. (Ex. 6-10)

Because Defendants have not identified all interested parties—and so could not say whether all those parties agree to the transfer—Defendants have failed to comply with Tex. R. Jud. Admin. 13.3(a)(3) and (4). The motion to transfer should be denied at this stage for this reason alone until all interested parties are identified, served and can be heard by the Panel on the issue of transfer.

In light of the Texas Attorney General's request that consideration of the motion be delayed, and notice that the State of Texas will also become an interested party with distinct claims and concerns, there is still more reason to deny the current, defective motion to transfer.

B. Plaintiffs Have Sought to Cooperate with Moving Defendants to Identify an Appropriate MDL Court.

Despite Defendants failure to include all necessary parties, Plaintiffs have sought to work with Defendants in identifying an appropriate court to coordinate pre-trial proceedings. Sharing Defendants' concerns about location and ease of access, Plaintiffs have presented to Defendants a range of qualified Republican and Democratic judges whose courts are conveniently located.

1. The appropriate court must be in a city with easy travel access.

The attorneys involved in this litigation work in several different Texas cities, and finding a court in an accessible and convenient location is important.

Locating the MDL in a major city—such as Dallas, Houston, San Antonio, or Austin—will be very important to promoting efficient resolution of pre-trial proceedings.

2. The MDL judge must be experienced and qualified to deal with complex litigation.

This litigation involves complex legal issues and complicated damages models. The relevant evidence is quite extensive, and managing the litigation for all parties in the state will be a difficult and demanding task. Recognizing the challenges involved, Plaintiffs have suggested a range of both Republican and Democratic judges in discussion with Defendants. In light of those discussions, Plaintiffs offer the following judges for consideration as qualified and well-prepared candidates to steer the litigation:

Carl Ginsberg – Dallas

Mark Greenberg – Dallas

Cathy Stryker – Bexar

Renee Yanta – Bexar

Jeff Schadwick – Harris

R. K. Sandill – Harris

Jan Soifer – Travis

Tim Sulak – Travis

Robert Schaffer – Travis

Each of these jurists have shown themselves well-qualified to serve as the MDL judge for the Texas opioid litigation. Other qualified judges, to whom Defendants had significant objections, have been omitted from this list. Plaintiffs also support the preference of the Texas Attorney General that, should an Opioid MDL be formed, it be created in Travis County. As shown above, Plaintiffs have identified three qualified judges in Travis County.

III. CONCLUSION

Plaintiffs respectfully urge the Panel to deny Defendants' motion to transfer as defective for failure to include all interested parties and identify all related cases. At the very least, Plaintiffs join the Texas Attorney General in asking that consideration of the motion to transfer be delayed. In the alternative, Plaintiffs respectfully request that the Panel consider the proffered judges because they have the experience and qualifications that mark them as well-suited to preside over the opioid pre-trial proceedings, and their courts are located in easily accessible cities that will be convenient to all parties. Plaintiffs also request such other and further relief to which they may be justly entitled.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that, on May 10, 2019, a true and correct copy of this Plaintiffs' Joint Response to Defendants' Motion to Transfer and Request for Immediate Stay was served through the electronic filing system to all counsel of record.

/s/ W. Mark Lanier
W. Mark Lanier